

7.	30-2024-01416560 Rodriguez vs. CR&R Incorporated	1. Motion to Compel Further Responses to Special Interrogatories 2. Motion to Compel Production Defendant CR&R INCORPORATED (hereinafter, “CR&R”) moves this Court to compel Plaintiff JOEL MARTIN RODRIGUEZ, (hereafter “Plaintiff”), to provide verified further responses to CR&R’s Request for Production, Set Two, Nos. 38 and 39, pursuant to Code of Civil Procedure §2031.210, 2031.220, 2031.280, and 2031.310. (ROA 84) Defendant CR&R INCORPORATED (hereinafter, “CR&R” or “Defendant”) moves this Court, pursuant to Code of Civil Procedure section 2030.010 et seq, for the following: 1. An Order compelling Plaintiff, JOEL MARTIN RODRIGUEZ (hereinafter “Plaintiff”) to respond to CR&R Incorporated’s Special Interrogatories, Set Two without objections within ten (10) days of the hearing on this Motion; and 2. Monetary sanctions in the amount of \$1,260.00 against Plaintiff and/or his counsel pursuant to Code of Civil Procedure sections 2023.010 and 2030.300(d). (ROA 85) The unopposed Motions are GRANTED pursuant to the arguments and authorities raised in the motions. Plaintiff’s response to RPDs are not clear. As to Special Interrogatory No. 82, Plaintiff’s objections have not been justified. [<i>Coy v. Sup.Ct. (Wolcher)</i> (1962) 58 C2d 210, 220-221; <i>Fairmont Ins. Co. v. Sup.Ct. (Stendell)</i> (2000) 22 C4th 245, 255.] Further responses, without objections, to be provided within 15 days of service of the notice of ruling. Sanctions against Plaintiff and his counsel, joint and severally, in the amount of \$1,260 to be paid within 30 days. Defendant to give notice.
8.	30-2024-01413986 Crossroads Equipment Lease and Finance, LLC vs. 3531 Trucking, Inc	1. Motion to Enforce Settlement 2. Order to Show Cause re: Dismissal on Settled Case Plaintiff, CROSSROADS EQUIPMENT LEASE AND FINANCE, LLC (“Plaintiff”) moves this Court pursuant to Code of Civil Procedure §§ 664.6 and 128, to enforce a settlement agreement between Plaintiff and Defendants 3531 TRUCKING, INC. and MIGUEL A. MIRANDA (“Defendants”) (collectively, the “Parties”) and enter judgment pursuant to a Stipulation for Entry of Judgment (the “Stipulation”) entered into by and between the Parties. The uopposed Motion is GRANTED. The court is empowered to enter judgment where parties to pending litigation stipulate to a settlement in a writing signed by the parties or their counsel outside court. [CCP § 664.6(a), (b)] Here, on 6/30/2025 the parties herein signed a “Stipulation to Entry of Judgment” (Decl. St. Clair¶3, Ex. A.) wherein Defendants stipulate to entry of judgment against them, jointly and severally, in favor in the amount of \$44,637.72. However, the parties also agreed to hold off on entering judgment to allow Defendants to make payments. The Declaration of Plaintiff’s Senior Recovery Specialist states Defendants made \$12,000 worth of payments, but then defaulted. (Decl. of St. Clair¶5.) As such, pursuant to the agreement and law, Plaintiff is entitled to the remaining principal, interest, attorneys fees, costs, and possession of the equipment.

		Plaintiff to submit a proposed Judgment for \$42,020.55 and possession of the 2016 Peterbilt, VIN 1XPXP4EX0GD318094 and 2018 Peterbilt, VIN 1NPCLJ0X4JD488038. Plaintiff to give notice.
9.	30-2025-01507039 Cordova vs. Indigo Master Participation, LP	1. Case Management Conference 2. Motion to Dismiss Defendants Indigo Master Participation, LP; Indigo Private Credit Fund II, LP (“Fund 2”); Indigo Private Credit Fund III, L.P.; Indigo Partnership Holdings, LP; Indigo PC-III Private Account I, LP (“Fund 3”); IGI Partners II PF, LLC; IGI Partners III MPAS, LLC; Indigo Commercial Funding II, LLC; Indigo Commercial Funding, LLC; Indigo Commercial Funding I-B, LLC; Indigo Global Advisors, LLC; Indigo Direct Services, LLC; Indigo Direct Lending, LLC; Indigo Investment Servicing, LLC; Brent E. Carey, Mary Kay Parsek, and Erik Jordan (collectively, “Defendants”) move for an order dismissing this action filed by plaintiff Thomas Cordova (“Plaintiff”) or staying in pursuant to the doctrine of forum non conveniens and the parties’ forum selection clause. “ ‘A defendant may enforce a forum-selection clause by bringing a motion pursuant to sections 410.30 and 418.10, the statutes governing forum non conveniens motions, because they are the ones which generally authorize a trial court to decline jurisdiction when unreasonably invoked and provide a procedure for the motion. [Citations.]’ ” (<i>Korman v. Princess Cruise Lines, Ltd.</i> (2019) 32 Cal.App.5th 206, 214.) “ ‘In a contract dispute in which the parties’ agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive.’ ” (<i>Id.</i> at p. 215.) “A clause is mandatory if it requires the parties to litigate their disputes exclusively in the designated forum, and it is permissive if it merely requires the parties to submit to jurisdiction in the designated forum. A permissive forum selection clause is subject to traditional forum non conveniens analysis to determine whether the designated forum is a suitable alternative forum and whether the balancing of various private and public interest factors favors retaining the action in California. These traditional forum non conveniens factors are not considered when a mandatory forum selection clause exists.” (<i>Verdugo v. Alliantgroup, L.P.</i> (2015) 237 Cal.App.4th 141, 147, fn 2 [internal citations omitted].) “ ‘When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. [Citation.]’ ‘Both California and federal law presume a contractual forum selection clause is valid and place the burden on the party seeking to overturn the forum selection clause. [Citations.]’ ‘It is well settled that parties may contract in advance to select the forum in which their disputes will be adjudicated. [Citation.]’ ” (<i>Korman, supra</i>, 32 Cal.App.5th at p. 216 [internal citations omitted].) “ ‘In the context of forum selection clauses, enforcement is considered unreasonable where “the forum selected would be unavailable or unable to accomplish substantial justice” or there is no “rational basis” for the selected forum. [Citation.]’ ” (<i>Korman, supra</i>, 32 Cal.App.5th at p. 216 [internal citations omitted].) “ ‘ “ ‘Mere inconvenience or additional expense is not the test of unreasonableness . . .’ ” for a mandatory forum selection clause. [Citation.]’ [Citation.] A clause is reasonable if it has a logical connection with at least one of the parties or their transaction.” (<i>Verdugo, supra</i>, 237 Cal.App.4th at p. 147.)